



JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

SECTION 1: IDENTIFICATION OF THE AGENCY AND THE CONTRACTING ACTIVITY

Department of State Contracting Activity	☐ Office of Acquisitions Management ☒ Foreign Service Institute ☐ Office of Foreign Missions ☐ U.S. Mission to the United Nations ☐ Overseas Post
Requiring Activity	Department of State, Foreign Service Institute, Executive Office, Office of Management Information Systems (FSI/EX/OMIS).

SECTION 2: NATURE AND/OR DESCRIPTION OF THE ACTION BEING APPROVED

Approval is requested to extend current interim contract 19FS1A24C0001 with Opus Group, LLC., up to an additional 6 months utilizing FAR 52.217-8 Option to Extend Services for continuity of Services while we finish Source Selection on the Re-compete of the IT Support Services for Information Assurance Support Services.

SECTION 3: DESCRIPTION OF SUPPLIES/SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS

The requirement is to provide Information Assurance Support Services at the Foreign Service Institute. The estimated value for the entire period of performance (Base, Options and Extension) is \$1,881,15.60. These supplies/services require supporting the operations and maintenance of IT systems and Information Assurance Services for the Foreign Service Institute. This will allow the Office of Management Information Systems to accomplish the mission of the Foreign Service Institute which is to develop the men and women our nation requires to fulfill our leadership role in world affairs and to defend U.S. interests.

The critical support procured through this contract action includes the following:

Critical Information Assurance Support: Conduct vulnerability assessments of the assigned FSI infrastructure, vulnerability mitigation recommendations, risk assessment and security architecture reviews. Scan and monitor critical IT systems on a daily basis using multiple Department approved vulnerability assessment tools. Detect and report security violations to the FSI ISSO or FSI AISSO and conduct timely remediation in accordance with the guidance of the FSI ISSO.

Systems Administration Support and Operations: Provide installation, implementation, and problem resolution support for COTS (Common Off The Shelf) and FSI custom designed applications. Ensure that all DS and IRM security and hardware configurations are strictly adhered to. Provide technical assistance to FSI users experiencing trouble with their applications and utilize diagnostic software to remediate complex issues. Ensure that all newly installed computers and peripherals are in working order and provide superior customer support during trouble ticket resolution.



SECTION 4: IDENTIFICATION OF THE STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION

This acquisition is conducted under the authority of 41 USC 3304, as implemented by FAR 6.3 and substantiated by the following: Check one of the FAR citations below and delete the other citations.

- ☐ FAR 6.302-1 – Only one responsible source and no other supplies or services will satisfy agency requirements.
- ☒ FAR 6.302-2 – Unusual and compelling urgency.
- ☐ FAR 6.302-3 – Industrial mobilization; engineering, developmental, or research capability; or expert service.
- ☐ FAR 6.302-4 – International Agreement.
- ☐ FAR 6.302-5 – Authorized or required by statute.
- ☐ FAR 6.302-6 – National Security.
- ☐ FAR 6.302-7 – Public Interest.

SECTION 5: DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF THE AUTHORITY CITED

Maximum urgency is required to implement an interim award for the purpose of retaining critical IT support service while source selection are being conducted for the upcoming award. These services are essential to Information Assurance and LAN administration to support the operations of FSI's Office of Management Information Systems. Without the contractual coverage for FSI's Office of Management Information Systems, a major deficiency in IT Information Assurance support and LAN administration support will occur and will severely impact all aspects of FSI's operations including active learning classes and training courses. The Office of Management Information Systems is responsible for supporting all devices and computer systems necessary for the daily operation of the classes provided by FSI.

SECTION 6. DESCRIPTION OF EFFORTS TO ENSURE THAT OFFERS WERE SOLICITED FROM AS MANY POTENTIAL SOURCES AS IS PRACTICABLE, INCLUDING WHETHER A NOTICE WAS OR WILL BE PUBLICIZED AS REQUIRED BY FAR SUBPART 5.2 AND, IF NOT, WHICH EXCEPTION UNDER FAR 5.202 APPLIES

Market Research was completed, Capability Statements were reviewed, and acquisition strategy decided. Market Research report submitted to OSD BU and 1910 approved for a 8(a) set-aside to be competed on STARS III.

CO is working with the Program Office on evaluating competitive solicitation packages with anticipated award date by April 2025.

SECTION 7. DETERMINATION BY THE CONTRACTING OFFICER THAT THE ANTICIPATED COST TO THE GOVERNMENT IS FAIR AND REASONABLE



The Contracting Officer has determined the anticipated price to the Government of the supplies/services covered by this J&A will be fair and reasonable based on price competition. Further, the Contracting Officer has determined the anticipated price to the Government for the supplies/services covered by this exception will be fair and reasonable based on established price list of 8(a) STARS III, price based on prior competition, and current contract pricing, and the Government's independent cost estimate.

The Contracting Officer will not award the planned action unless the Contracting Officer evaluates and determines that the resultant price is fair and reasonable.

SECTION 8. DESCRIPTION OF THE MARKET RESEARCH CONDUCTED (SEE PART 10) AND THE RESULTS OR A STATEMENT OF THE REASON MARKET RESEARCH WAS NOT CONDUCTED

This is a request for an Interim Award to allow for the time needed for re-competition.

Market Research was completed, Capability Statements were reviewed, and acquisition strategy decided. Market Research report submitted to OSDDBU and 1910 approved for an 8(a) set-aside to be competed on STARS III.

Solicitation was competed on 8(a) STARS III and we are currently in Source Selection.

SECTION 9. ANY OTHER FACTS SUPPORTING THE USE OF OTHER THAN FULL AND OPEN COMPETITION

FSI's Office of Management Information Systems (FSI/EX/OMIS) has comprehensive responsibilities for the operations and maintenance of FSI's internal computer networks and communication systems, and application of the systems to meet both internal FSI needs and the data needs of other Bureaus.

The purpose of the IT Support Services contract is to acquire Information Assurance Support Services to effectively support FSI's Office of Management Information Systems which is responsible for FSI's IT Training operations.

SECTION 10. LISTING OF THE SOURCES, IF ANY, THAT EXPRESSED, IN WRITING, AN INTEREST IN THE ACQUISITION

N/A

SECTION 11. STATEMENT OF THE ACTIONS, IF ANY, THE AGENCY MAY TAKE TO REMOVE OR OVERCOME ANY BARRIERS TO COMPETITION BEFORE ANY SUBSEQUENT ACQUISITION FOR THE SUPPLIES OR SERVICES REQUIRED

Re-compete was conducted, and the CO is working with the Program Office on evaluating competitive proposals with anticipated award date by April 2025.